

IN THE MUNICIPAL COURT OF THE CITY OF [CITY OF THE UNDERLYING ORDINANCE
VIOLATION — CONFIRM WITH THE COURT], KANSAS

[CITY AS NAMED IN THE UNDERLYING MUNICIPAL CASE],
Plaintiff,

v.

RILEY SAMPLE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR EXPUNGEMENT OF A CITY ORDINANCE CONVICTION OR DIVERSION
PURSUANT TO K.S.A. 12-4516

STATUTORY AUTHORITY

K.S.A. 12-4516 — A person convicted of a violation of a city ordinance may petition the convicting municipal court to expunge the conviction and related arrest records; a person who has fulfilled the terms of a diversion agreement based on a city ordinance violation may likewise petition the court. The court sets a hearing and causes notice to be given to the prosecuting attorney and the arresting law enforcement agency, and shall order expungement on three findings: that the petitioner has not been convicted of a felony in the past two years and no such proceeding is pending or being instituted; that the petitioner's circumstances and behaviour warrant expungement; and that expungement is consistent with the public welfare. There is no firearms finding, because a municipal ordinance conviction is not a felony.

K.S.A. 12-4516(a)(1) — Conviction of a city ordinance violation: the petition may be brought once three or more years have elapsed from the latest of satisfying the sentence imposed or discharge from probation, parole or a suspended sentence.

K.S.A. 12-4516(a)(2) — Fulfilled diversion agreement based on a city ordinance violation: the petition may be brought once three or more years have elapsed from the date the terms of the diversion agreement were fulfilled.

K.S.A. 12-4516(b) — An ordinance violation prohibited by K.S.A. 12-16,134(a) or (b) and adopted before July 1, 2014: no elapsed period is stated for this category.

K.S.A. 12-4516(c) — An ordinance violation that would also constitute prostitution under K.S.A. 21-6419 or former K.S.A. 21-3512, where the petitioner can prove coercion caused by the act of another: one year from satisfying the sentence, fulfilling the diversion terms or discharge from supervision.

K.S.A. 12-4516(d) — Five years for an ordinance violation that would also constitute vehicular homicide, driving while cancelled, suspended or revoked, perjury under K.S.A. 8-261a, a fraudulent application under K.S.A. 8-142 Fifth, a felony in which a motor vehicle was used, failing to stop at an accident scene, no motor vehicle liability insurance under K.S.A. 40-3104, or a violation of former K.S.A. 21-3405b.

K.S.A. 12-4516(e) — Five years for an ordinance violation that would also constitute a first violation of K.S.A. 8-1567 (driving under the influence) under (e)(1), and ten years for a second or subsequent violation under (e)(2). Subsection (e) applies to all violations committed on or after July 1, 2006, and the municipal statute has no equivalent of the K.S.A. 21-6614(d)(3) seven-year window.

K.S.A. 12-16,134 — Identifies the ordinance categories referenced by K.S.A. 12-4516(b), and is carried in the pinned registry authority list for this track.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Municipal Court of the City of [CITY OF THE UNDERLYING ORDINANCE VIOLATION — CONFIRM WITH THE COURT], Kansas, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in the city whose ordinance is the subject of this Petition.

II. PARTIES

3. Petitioner is Riley Sample, whose address is 1234 Example Avenue, Topeka, KS 66601.

4. Plaintiff is the city whose ordinance is the subject of this Petition.

5. Petitioner has also been known as: Riley Q. Sample.

III. FACTS AND CASE HISTORY

6. On or about 01/15/2019, Petitioner was charged with Violation of a city ordinance prohibiting theft of property by City of Example Police Department.

7. The matter was assigned Docket Number [TO BE CONFIRMED].

8. On 04/12/2019, the matter was resolved with the following disposition: Convicted of the ordinance violation.

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for expungement on the following basis: Expungement of a city ordinance conviction under K.S.A. 12-4516(a)(1), three or more years having elapsed from the latest of satisfying the sentence imposed or discharge from probation, parole or a suspended sentence.

10. Three or more years have elapsed since Petitioner satisfied the sentence imposed and was discharged from supervision on the conviction identified above.

11. Petitioner asks the Court to set a hearing and to give notice to the prosecuting attorney and the arresting law enforcement agency, as the statute directs.

12. Petitioner asks the Court to find that Petitioner has not been convicted of a felony in the past two years and that no such proceeding is pending or being instituted; that Petitioner's circumstances and behaviour warrant expungement; and that expungement is consistent with the public welfare.

13. Petitioner states the circumstances and behaviour relied on in the accompanying statement; that statement is completed by Petitioner and is not supplied by any other person.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the expungement of the conviction or diversion identified in this Petition and the arrest records related to it in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to expunge all records relating to

this matter; and
(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, Riley Sample, declare that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

Riley Sample
1234 Example Avenue, Topeka, KS 66601

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

PROPOSED ORDER

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VIOLATION — CONFIRM WITH THE COURT], KANSAS

[CITY AS NAMED IN THE UNDERLYING MUNICIPAL CASE] v. RILEY SAMPLE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The convicting municipal court, the prosecuting attorney, and the arresting law enforcement agency, City of Example Police Department, and all other criminal justice agencies with records pertaining to this matter are hereby directed to expunge all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Proposed order of expungement
- Certified municipal court record and disposition
- Proof of satisfaction of sentence or discharge from supervision

Prepared by petitioner using LegalEase RCAP. This is not an official court form.